

crowd-cast Data Purchase and Participation Agreement

Between: pdoom UG (haftungsbeschränkt) ("p(doom)")
And: (), the Participant

What this agreement covers

You are participating in crowd-cast, a data collection project run by p(doom). crowd-cast is a desktop recorder that captures screen recordings, keyboard/mouse events, and app/window metadata from applications you choose, along with technical and diagnostic data about the recorder. The goal is to collect real human computer-work data for AI research and commercial AI development.

This agreement sets out the terms under which p(doom) purchases this data from you. It also applies to data you uploaded before accepting it. Compensation for periods before you accepted this agreement is governed by the terms that applied at the time.

Your role

- You are a private individual, not an employee, freelancer, contractor-for-hours, agent, or representative of p(doom).
- There is no employment relationship between you and p(doom).
- You may install and use crowd-cast to passively record your own computer work.
- You decide when and whether to record. p(doom) does not assign tasks, working hours, deliverables, methods, or a work schedule.
- p(doom) does not supervise your work.

What you are paid for

Payment is fixed data acquisition compensation for accepted data, not compensation for labor time. You are selling data, not working for p(doom).

p(doom) reviews uploaded data for project relevance, technical quality, and legal/privacy safety. p(doom) may reject data that is private or sensitive (including other people's personal data), corrupted, or legally risky, and may also reject data that is staged or mostly idle. Rejected data is deleted and is not paid for. All other uploaded data is accepted. p(doom) will exercise its right to reject in good faith. For data that is staged or mostly idle, p(doom) will usually adjust compensation instead of rejecting it (see Compensation).

Compensation

Your monthly compensation is the amount stated in your personal agreement for regular contributions of qualifying recording data. If your payout currency differs from the currency of that amount, payment will be converted at the prevailing exchange rate of the payment provider on the date of transfer. p(doom) may adjust compensation for a given period if the volume or quality of accepted data is significantly below regular levels, for example because recordings are staged or mostly idle. Any adjustment will be communicated to the participant before payment, and the participant may terminate the agreement if they do not accept the adjustment.

The stated amount is a total amount. No value-added tax (VAT) is added on top; should any statutory VAT unexpectedly apply, it is treated as included in this amount.

What you may record

- Your own pre-existing computer work (work you would be doing anyway).
- Work you own or have permission to share.

What you must NOT record

- Employer-confidential or client-confidential material
- NDA-covered work
- Private messages or personal conversations
- Other people's personal data, such as colleagues', clients', or patients' records
- Meetings or calls
- Passwords, credentials, or login screens
- Medical, legal, or financial records
- Any material you do not have the right to share

Rights in your data

When you upload data through crowd-cast, you grant p(doom) an irrevocable, worldwide, perpetual, non-exclusive right to use (Nutzungsrecht) it. "Your data" means everything crowd-cast uploads: screen recordings, keyboard and mouse events, app/window metadata, and technical and diagnostic data. This also applies to data you uploaded before accepting this agreement. This right includes the right to:

- Reproduce, store, and archive the data
- Distribute, publish, and make publicly available
- Modify, adapt, and create derivative works
- Use for AI model training, evaluation, and benchmarking
- Include in datasets for research and commercial purposes
- Sublicense, sell, and commercially distribute the data or derivative works

These usage rights survive termination of this agreement and are permanent regardless of whether your participation continues. If p(doom) rejects data, the right to use that data ends and p(doom) deletes it. p(doom) may exercise these rights without attribution.

You consent to the use of your data without attribution (Namensnennungsrecht) and agree not to object to modifications of your data for the purposes described above.

Both parties acknowledge that all types of use listed in this agreement (including research, dataset construction, AI model training and evaluation, public dataset release, and commercial distribution) are known and established types of use at the time of this agreement.

These usage rights are without prejudice to your statutory data protection rights, which are described in the Privacy and Recording Consent.

You represent and warrant that you have the legal right to provide this data and grant these usage rights, and that your data does not infringe the intellectual property rights, privacy rights, or other rights of any third party.

Indemnification

You agree to indemnify and hold p(doom) harmless from claims, damages, losses, or expenses arising from: (a) your breach of this agreement, (b) your recording of material you did not have the right to share, or (c) any third-party claim that your submitted data infringes intellectual property rights, privacy rights, or confidentiality obligations. This indemnification is limited to cases of intentional or grossly negligent breach on your part.

Limitation of liability

p(doom)'s liability for damages under this agreement is as follows: liability for intent (Vorsatz) and gross negligence (grobe Fahrlässigkeit) is unlimited. Liability for injury to life, body, or health is unlimited regardless of fault. Liability for breach of essential contractual obligations (Kardinalpflichten) through

ordinary negligence is limited to foreseeable, contract-typical damages. For all other claims of ordinary negligence, p(doom)'s total liability is limited to the total amount paid to you in the 12 months preceding the claim.

Monthly statements

p(doom) may issue monthly Auszahlungsbelege (Data Purchase Statements) documenting each payment. These statements are not invoices under German VAT law (UStG). No VAT is shown and no input VAT (Vorsteuer) is claimed.

Tax responsibility

You are responsible for determining and fulfilling any tax obligations arising from payments you receive under this agreement, in your country of residence or tax jurisdiction. p(doom) does not withhold income tax, wage tax, social security contributions, or VAT for private individual participants unless required by applicable law.

Termination

Either party can end this agreement at any time, for any reason, with no penalty. Just let the other party know. Compensation for the period up to the end of the agreement is paid in the next regular payout. Termination does not affect rights already granted in your data.

Right of withdrawal (Widerrufsrecht)

You have the right to withdraw from this agreement within 14 days without giving any reason. The withdrawal period expires 14 days after the day of the conclusion of the contract. To exercise the right of withdrawal, you must inform p(doom) (p(doom) UG, Volkartstr. 43, 80636 München, Germany, mihir@pdoom.org) of your decision to withdraw by an unequivocal statement (e.g. an email). You may use the following model withdrawal form, but it is not obligatory:

"I hereby give notice that I withdraw from my crowd-cast Data Purchase and Participation Agreement. Concluded on [date]. Name of participant. Address. Signature (only if sent on paper). Date."

If you withdraw within the 14-day period, any compensation already paid to you for data not yet accepted must be returned. p(doom) will confirm the withdrawal and any amounts owed within 14 days.

By beginning to record and submit data, you expressly consent to p(doom) beginning performance of the agreement before the withdrawal period has expired. You acknowledge that you will lose your right of withdrawal once the agreement has been fully performed (i.e., once data has been accepted and paid for). Withdrawal does not affect usage rights already granted for data that was uploaded and not rejected before withdrawal. If you withdraw after accepting an updated version of this agreement, the previous version continues to apply.

Changes to this agreement

p(doom) may propose changes to this agreement. Changes apply once you accept them, including to data you have already uploaded where the changes say so. If you do not accept, you may stop participating; data you have already uploaded remains subject to the terms under which you uploaded it.

Governing law

This agreement is governed by German law. If a dispute arises, both parties will try to resolve it informally first.